Mend — a qualifying risk control for EPLI underwriting

What it is

Mend is a real-time conflict mediation tool used inside a company, between employees, before a dispute escalates into a formal complaint. It gives employees a structured way to work through a conflict directly, with an AI-assisted mediator present, instead of the two paths that exist today: say nothing, or go straight to HR.

The gap it closes

Most EPL exposure doesn't start as a lawsuit. It starts as an unresolved interpersonal conflict that festers for weeks or months before someone escalates it into a formal complaint or files externally. Existing tools (EAPs, harassment hotlines, HR reporting software) only engage after that escalation has already happened. Mend sits earlier, at the point where the conflict is still informal and resolvable.

Why it's relevant to EPL risk, specifically

- • It gives employers a documented, consistently-applied harassment-reporting mechanism — the same category of control carriers already recognize (hotlines, EAP referral paths, documented complaint procedures).
- • It includes a non-configurable "safety floor": certain categories of conflict (harassment, discrimination, threats) trigger a mandatory escalation to a human, every time, regardless of employer settings. This is structural, not a policy an employer can turn off.
- • Outside that safety floor, the tool is zero-trace by design: no transcript, no record, nothing retained once a session ends. This isn't a privacy nice-to-have, it's what makes employees actually use it instead of treating it like another surveillance channel. Low utilization is the chronic failure mode of EAPs and hotlines; this is a direct design response to that.

The credit structure we're proposing

A flat credit for having the control in place, not one that scales with reported incident volume. We specifically don't want a structure where fewer reported incidents produces a bigger discount — that creates an incentive to suppress reporting, which defeats the purpose of the tool. We're looking to match whatever structure carriers already use for comparable controls (e.g. Chubb's EPL Loss Prevention Program reimburses a percentage of cost for using a pre-approved vendor, capped as a percentage of premium).

What we're asking from this conversation

1. Which of your EPLI markets maintain a pre-approved vendor/risk-control directory with an associated credit (like Chubb's), versus carriers that build this in-house and don't credit external tools?
2. What a real vendor listing looks like in practice, and whether software tools (versus law firms/consultants) appear in these directories today.
3. Whether the flat-credit structure above is something a carrier would recognize, or whether that's a nonstarter worth knowing before we go further.

Stage

Pre-revenue, no entity formed yet. Not asking for a signed program today — looking to understand the landscape before deciding how much further to take this.

Matthew Barton · Mend